

Subject: Re: Complaint - CA-2024-001342 (ref: 76334099)
Date: Wednesday, October 29, 2025 at 8:08:56 AM Greenwich Mean Time
From: Nadia <nadia@rosekross.com>
To: HM Courts and Tribunals Service <replies@optic.justice.gov.uk>
CC: contacthmcts@justice.gov.uk <contacthmcts@justice.gov.uk>, civilappeals.registry@justice.gov.uk <civilappeals.registry@justice.gov.uk>, public.enquiries@justice.gov.uk <public.enquiries@justice.gov.uk>
Priority: High
Attachments: Pre-Action Protocol Letter + Annex A .pdf, Follow-Up Pre-Action Letter – Unlawful Revocation of Participation Measures (21 Oct 2025).pdf, Urgent_Escalation_NadiaZahmoul_28Oct2025.pdf

Subject: Re: Complaint – CA-2024-001342 (ref: 76334099)

Dear Ms Walker,

Thank you for your email acknowledging my letters of 20 Oct 2025, 21 Oct 2025, and 28 Oct 2025.

For clarity, I am not challenging a judicial decision via the complaints route. My complaint concerns HMCTS administrative failures and service provision under the **Equality Act 2010 (ss.20, 29) and FPR Part 3A / PD3AA** — specifically the revocation and non-maintenance of participation measures post-trial, the lack of adjustments when I was unrepresented and in clinical crisis, and the failure to respond substantively to my pre-action correspondence.

Your reply states that “this matter is at an end in this Court,” citing the 23 Dec 2024 refusal and the 4 Aug 2025 refusal. That goes to the judicial appeal pathway; it does not answer the administrative/service-failure issues raised in my complaint and pre-action letters.

Accordingly, please treat this as a request for **Stage 2 review** by the Operations Manager named in your email (Mr Ray Harrison) and **address the following service and equality points within 7 days:**

1. Policy & record: Was any HMCTS/RCJ policy, log, or decision record made when my participation measures were withdrawn post-trial? If so, please disclose it. If not, please confirm none exists.
2. Continuing duty: What HMCTS process exists to ensure continuing compliance with FPR Part 3A after the conclusion of a trial (e.g., during orders/costs/drafting/appeal steps for a vulnerable litigant in person)?
3. Reasonable adjustments: Why were basic adjustments (intermediary support, structured communications, assistance with orders/costs timetable) not provided, despite notice of my Autism and PTSD and contemporaneous clinical evidence?

4. Equality assessment: Please confirm whether any Equality Act / reasonable-adjustment assessment was performed for the post-trial phase; if so, by whom and when (and please disclose it).
5. Remedial proposals: HMCTS's proposed steps now — including formal acknowledgment of breach, apology, policy correction, and assurance of future compliance, and how HMCTS proposes to engage with the MoJ regarding systemic learning.

I remain ready to provide updated medical evidence (including September–October 2025 relapse) if required.

Kind regards,

Nadia Zahmoul

Email: nadia@rosekross.com

Attachments (for ease of reference):

- Pre-Action Protocol Letter + Annex A (20 Oct 2025)
- Follow-Up Pre-Action Letter (21 Oct 2025)
- Urgent Escalation / non-response reminder (28 Oct 2025)

From: HM Courts and Tribunals Service <replies@optic.justice.gov.uk>

Date: Tuesday, October 28, 2025 at 10:04 AM

To: Nadia <nadia@rosekross.com>

Subject: Complaint - CA-2024-001342 (ref: 76334099)

NOTE: Please do not edit the subject line when replying to this email.

Dear Ms Zahmoul

Thank you for your recent Pre-Action Protocol Letter dated 20 October 2025, follow up letter dated 21 October 2025 and follow up letter dated 28 October 2025

I am the Delivery Manager and I am acknowledging receipt but responding within our complaints process.

The HMCTS complaints procedure is intended for complaints regarding administrative functions. It is inappropriate to use the complaints procedure to challenge a judicial decision.

That saying, I see that you were informed as below on the 15 September 2025

Your papers were referred to the Jurisdiction Lawyer, Mrs Levey, of the Court of Appeal who has asked me to inform you of the following:

'I refer to the appellant's notice filed by you seeking permission to appeal the costs judgment of Mr Justice MacDonald dated 24 May 2024.

You have already sought permission to appeal the order dated 24 May 2024 arising from both the substantive judgment and costs judgment of Mr Justice MacDonald in this Court under case reference CA-2024-001342.

Your permission to appeal application was refused by order of Lord Justice Moylan on 23 December 2024.

Furthermore, your application for permission to re-open the decision of Lord Justice Moylan dated 23 December 2024 was refused by Lady Justice King by order dated 4 August 2025.

As it is not possible to appeal the same decision twice in this Court, no action will be taken on your appellant's notice.

This matter is at an end in this Court.'

Master Meacher reviewed the above direction and you were informed that the contents was correct on 22 September 2025.

Although clearly disappointing, this matter is now at an end and on this occasion, I have found no evidence of maladministration.

If you're unhappy with my response

HMCTS operates three stage complaints handling procedure. If you remain dissatisfied with our reply, you can ask a senior manager, Ray Harrison to review your complaint by replying to this email/by writing to the below address. You must explain simply and clearly what parts of the response you've received you do not agree with and would like reviewed.

Mr Ray Harrison

Operations Manager

Civil Appeals Office

Royal Courts of Justice,

Strand, London

WC2A 2LL

You must explain simply and clearly what parts of the response you've received you do not agree with and would like reviewed.

Yours sincerely,

S Walker

Sharon Walker

Delivery Manager
RCJ Civil Appeals Office, Civil Appeals | HMCTS | Civil Appeals Office, Royal Courts of Justice,
Strand, London WC2A 2LL

IMPORTANT NOTE: Please do not edit the subject line when replying to this email. Any emails sent to this email address (replies@optic.justice.gov.uk) that are not about your complaint will not reach their intended recipient and won't be replied to. If you need to submit an application or require an update on your case, this must be sent to the court or tribunal managing your case using their approved enquiries in-box. Contact details are available at [Find a court or tribunal - GOV.UK](https://www.gov.uk/find-a-court-or-tribunal) (www.gov.uk).